

**CHAPTER lxxxix.**

An Act to confer further powers on the Clyde Valley
Electrical Power Company and for other purposes.

A.D. 1904.

[22nd July 1904.]

WHEREAS by the Clyde Valley Electrical Power Act 1901 (in this Act called "the Act of 1901") the Clyde Valley Electrical Power Company (hereinafter called "the Company") were incorporated and authorised (amongst other things) to acquire lands and buildings to erect certain electrical generating stations and other works and to supply electricity within the area described in the Second Schedule to the said Act:

And whereas by section 37 of the Act of 1901 it is enacted that nothing therein shall authorise the Company to erect a station for generating energy elsewhere than on the lands described in the First Schedule to that Act and that the quantity of land which the Company might acquire and hold under the powers of the said section should not at any time exceed thirty acres:

And whereas with a view to the more convenient supply of electricity by and the carrying on of the business of the Company it is expedient that the restrictions so imposed upon the Company should be removed:

And whereas Provisional Orders under the Electric Lighting Acts have been granted to local authorities and other undertakers for the lighting of several districts and places within the Company's area for the supply of electricity and the Company are desirous of obtaining power to acquire by agreement such undertakings already authorised or which may be authorised by Provisional Orders as the undertakers may be willing to transfer to them and

A.D. 1904. — to supply electric energy under such Provisional Orders in and to the districts and places to which the undertakings so transferred relate and it is expedient that the necessary powers should be conferred on the Company and such undertakers respectively :

And whereas it is expedient that in addition to the powers conferred on the Company by the Act of 1901 the Company should be authorised to transfer to any local authority or person within the Company's area of supply any Provisional Order which the Company may acquire or obtain and to enter into agreements for carrying out any such transfer and to contract and agree with any such local authority or person to carry out any electric works and electric installation for power or light within any electric lighting area of such local authority or person :

And whereas it is expedient that the Company and any such local authorities or persons as aforesaid should be empowered to enter into and carry out agreements for or in relation to any of the purposes of this Act and that the agreement made between the Company and the provost magistrates and councillors of the burgh of Clydebank as set forth in the Schedule to this Act should be confirmed :

And whereas by section 78 of the Act of 1901 it is provided among other things that if within four years from the commencement of that Act the Company have not erected a generating station or generating stations sufficient in the opinion of the Board of Trade and are not in a position to supply therefrom the Board of Trade may on the application of a local authority as therein provided order that the powers of the Company under the said Act should cease as to the whole or any portion of the area of supply and it is expedient that the said period should run from the passing of this Act :

And whereas it is expedient that the period authorised by the Act of 1901 for the payment of interest out of capital should be extended as hereinafter provided :

And whereas it is expedient that the Company should be authorised to apply their funds and revenues to the purposes of this Act :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :— A.D. 1904.

1. This Act may be cited as the Clyde Valley Electrical Power Act 1904. Short title.

2. In this Act the several words and expressions to which meanings are assigned by the Act of 1901 have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

3. So much of section 37 of the Act of 1901 as prohibits the construction of stations for generating energy elsewhere than on the lands described in the First Schedule to that Act and restricts the quantity of land which the Company may acquire and hold is hereby repealed and the Company may in addition to the lands described in the said Schedule acquire and hold for the purposes of their undertaking any quantity of land not exceeding one hundred acres but the Company shall not be exonerated from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any lands purchased held or taken on lease by agreement and nothing in this section shall authorise the Company to construct a station for generating electricity outside the area of supply as defined by the Act of 1901. Amendment of section 37 of Act of 1901.

4.—(1) The Company may by agreement (but not otherwise) acquire from any local authority or other undertakers to whom a Provisional Order under the Electric Lighting Acts 1882 to 1902 has been or may be granted relating to a district or place within the Company's area of supply the undertaking authorised by such Provisional Order and the powers rights authorities and privileges of the undertakers under such Provisional Order and any such undertakers to whom a Provisional Order has prior to the date of the passing of this Act been granted (whether such Order has been confirmed before or shall be confirmed after such date) may with the approval of the Board of Trade transfer their undertaking powers rights authorities and privileges to the Company on such terms and conditions as may be agreed upon and in the event of the Company so acquiring such undertaking powers rights authorities and privileges they shall be deemed to be the undertakers for all the purposes of the Provisional Order so acquired by them and of the Acts incorporated therewith and the provisions of such Provisional Order shall apply to the supply of electricity by the Transfer of undertakings of local authorities and others to Company.

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Company under such Order within the area of supply as defined by such Order. Provided that notwithstanding the acquisition by the Company of any such Order the price to be charged by the Company for the supply of electricity for power purposes shall not exceed the price which the Company are authorised to charge under the Act of 1901. Provided also that in the case of any Provisional Order granted prior to the year one thousand nine hundred to any local authority the provisions of the Electric Lighting (Clauses) Act 1899 and of any Acts amending the same shall from and after such transfer be deemed to have been incorporated with such Provisional Order and shall control and supersede such of the provisions of that Order as are at variance or inconsistent therewith.

(2) In the event of any Provisional Order and the undertaking thereby authorised being acquired by the Company under this section the provisions of the Electric Lighting Act 1888 and the Electric Lighting (Clauses) Act 1899 shall subject to any variations of such provisions contained in such Order apply to such undertaking and any such undertaking where the undertakers are a local authority shall be deemed to be within the provisions of section 2 of the said Electric Lighting Act 1888. Provided that the periods at which any such local authority may so repurchase the undertaking or so much thereof as is within their jurisdiction under the provisions of the said section shall be reckoned from the date of the acquisition thereof by the Company. Provided also that none of the provisions of any Provisional Order so acquired by the Company or of the Electric Lighting Acts 1882 to 1902 shall extend to authorise the purchase by any local authority of any generating station or other works of the Company used or required for the purposes of supplying any other part of the Company's area of supply.

(3) Any capital moneys received by any local authority in respect of any transfer under this section shall be applied by such authority in manner provided by subsection (2) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899.

Confirmation
of Clydebank
agreement.

5. The agreement as amended and set forth in the Schedule to this Act made between the Company and the provost magistrates and councillors of the burgh of Clydebank is hereby confirmed and made binding on the parties thereto and shall be carried into effect according to the true intent and meaning thereof.

6. The Company and any local authority or person within the area of supply of the Company may contract and agree on such terms as may be agreed upon as follows :—

A.D. 1904.

Contracts
with local
authorities
&c.

(1) For the transfer by the Company to the local authority of any Electric Lighting Order acquired or obtained and held by the Company within the area of such local authority :

(2) For the execution and completion by the Company or any local authority or person of any works and installations which any such local authorities or persons or the Company are or may be authorised to carry out.

7. The period limited by section 78 of the Act of 1901 is hereby extended for four years from the passing of this Act.

Amendment of
section 78 of
Act of 1901.

8. Section 79 of the Act of 1901 is hereby amended to the effect that the period limited for payment of interest out of capital as therein provided shall be three years from the passing of this Act or such less period as the directors may determine.

Amendment
of section 79
of Act of
1901.

9. The Company may apply for or towards the purposes of this Act and the Act of 1901 to which capital is properly applicable any sums of money which they have already raised or are authorised to raise under the authority of the Act of 1901 as amended by this Act.

Power to
apply funds.

10. Nothing in this Act shall prejudice or affect the provisions contained in the Act of 1901 for the protection or benefit of any county or burgh authority and the powers conferred on the Company by this Act shall be subject to such provisions so far as the same are applicable thereto.

Saving for
county and
burgh autho-
rities.

11. All costs charges expenses and liabilities of and preliminary to and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be borne and paid by the Company.

Costs of Act.

A.D. 1904.

The SCHEDULE referred to in the foregoing Act.

MINUTE OF AGREEMENT between the TOWN COUNCIL OF THE BURGH OF CLYDEBANK (hereinafter called "the Town Council") of the first part and the CLYDE VALLEY ELECTRICAL POWER COMPANY (hereinafter called "the Company") of the second part.

It is contracted and agreed between the parties hereto as follows (viz.) :—

First The Town Council shall and they hereby transfer the Clydebank Electric Lighting Order 1901 together with the powers rights functions and authorities contained therein and conferred thereby (hereinafter called "the Clydebank Order") to the Company who shall take over and carry the same into effect.

Second The Town Council shall have power to resume possession by purchase of the undertaking authorised by the Clydebank Order at the expiry of twenty-one years from the date of confirmation of the transfer of the Order to the Company and at the expiry of every subsequent period of seven years up to thirty-five years in each case on giving twelve months' previous notice in writing and on payment of the value of the undertaking as a going concern as such value may failing agreement be determined by arbitration as hereinafter provided At and after the expiry of forty-two years from the said date the Town Council shall have power to resume possession of the said undertaking in the manner and upon the terms specified in the Electric Lighting Act 1888 In the event of the Town Council resuming possession under the above provisions they shall purchase the property material and plant of the Company within the burgh of Clydebank suitable to and used by them for the purposes of the Clydebank Order only but excluding all property material and plant applicable to the Company's business under the Clyde Valley Electrical Power Act 1901 or any Act or Order extending or amending that Act.

Third The Company shall relieve the Town Council of all obligations incumbent upon them under the Clydebank Order and in the event of the

Company at any time resolving to abandon the Order they shall give at least one year's notice to the Town Council with a view to the Town Council resuming possession of the Order and the Company shall bear the cost of the re-transfer of the Order to the Town Council. A.D. 1904.

Fourth The Company shall duly and effectually perform all the obligations imposed upon them by this agreement or as undertakers under the Clydebank Order or by any regulations made by the Board of Trade under that Order. If any question arises whether the Company have made any default in the due and effectual performance of such obligations such question shall if the Town Council so require and whether the Company are or are not liable in respect of such default to any other penalty under the Electric Lighting Acts or the Clydebank Order be determined by arbitration and if the arbiter is of opinion having regard to all the circumstances of the case that the Company has failed in material respects to work the undertaking as required by those Acts and that Order and that it is desirable in the public interest that the working thereof should be resumed by the Town Council he may by his award require the Company to sell the undertaking to the Town Council and thereupon the Town Council may purchase and the Company shall sell the undertaking on the terms provided for in article second hereof in the case of the Town Council resuming possession of the undertaking at or after the expiry of the period of forty-two years.

Fifth If any difference arise between the Town Council and the Company as to the efficiency regularity or suitability of the light supplied by the Company or as to any matter or thing arising out of this agreement every such difference shall on the application of either party be referred to the determination of an arbiter to be mutually agreed upon or failing agreement to be appointed at the request of either party by the Board of Trade and such arbiter shall have power to determine the matter in difference.

Lastly This agreement is made subject to the approval of Parliament and the Company undertake to apply for such sanction in the ensuing session and also if necessary in the following sessions and the Town Council agree to give at the expense of the Company such consents and support to the said applications as the Company may require.

IN WITNESS WHEREOF these presents written upon this and the three preceding pages are executed in duplicate by the parties hereto as follows (viz.) They are subscribed by Alexander Stewart provost and John Hepburn town clerk both of the said burgh of Clydebank for and on behalf of the Town Council and they are sealed with the common seal of the said burgh all at Clydebank on the seventeenth day of November nineteen hundred and three before these witnesses Thomas Calder clerk to the said John Hepburn and George Ross surveyor to the said burgh and they are subscribed by Sir David Richmond and Joseph Harry Lukach two of the directors and James

[Ch. lxxxix.] *Clyde Valley Electrical Power*
Act, 1904.

[4 EDW. 7.]

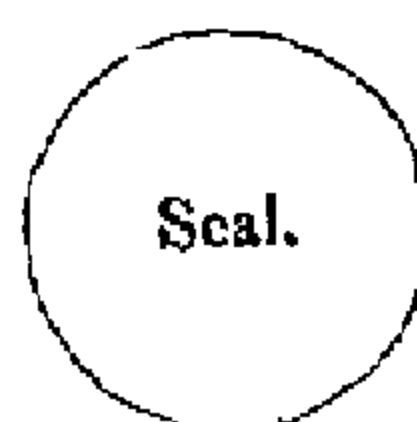
A.D. 1904.

Mackenzie the secretary of the Company and they are sealed with the common seal of the Company all at Glasgow on the twenty-sixth day of November nineteen hundred and three before these witnesses William Johnstone writer in Glasgow and Robert Robertson civil engineer in Glasgow.



ALEXANDER STEWART Provost
JOHN HEPBURN Town Clerk

THOMAS CALDER Witness
GEO. ROSS Witness



DAVID RICHMOND Director
J. H. LUKACH Director
JAMES MACKENZIE Secretary

WILLIAM JOHNSTONE Witness
ROBERT ROBERTSON Witness.

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